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Calif. Law Makes It Easier to Recover Art Taken by Nazis

September 16, 2024 | Newsmax.com
Author: Sam Barron | Section: Newsfront | 364 Words
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A new law signed by California Democrat Gov. Gavin Newsom on Monday is aiming to make it easier for Jews to recover art taken by Nazis during the Holocaust.

Newsom said California has a "moral and legal imperative" to ensure "valuable and sentimental pieces" taken during the Holocaust are returned to their families.

The legislation was inspired by a federal court ruling that ruled a painting taken by Nazis should remain in a Spanish museum instead of being returned to a Jewish woman's family in California, Politico reported.

Lilly Cassirer Neubauer had to sell the painting to a Nazi art appraiser in 1939 for $360 before leaving Germany as World War II was beginning, according to court documents. The painting was eventually sold in 1993 to a Madrid museum and is valued in the tens of millions of dollars, Politico said.

Neubauer's grandson learned of the painting's existence in 2000 and asked the museum to return it, but they refused, saying they acquired the painting fairly. A lawsuit was filed in 2005, and has made its way through the courts, with the question being whether Spanish or California law should determine ownership of the painting, Politico said.

The Supreme Court ruled in 2022 that California should apply, but a three-judge panel of the Ninth Circuit ruled earlier this year that Spanish law should apply, due to a California law that allowed the foreign law of a foreign government to be used in cases like this, Politico reported.

"It's incredibly shameful that the government of Spain continues to retain the painting. They know and have conceded that it was stolen from this family," Assembly Member Jesse Gabriel, D-Calif., told Politico. "It's time for that wrong to be righted."

The new law, which immediately takes effect, declares California law should supersede contradicting laws when it comes to art or other personal property taken as a result of political persecution, Politico said.

The Cassirer family has requested its case be reconsidered by the 9th Circuit, according to the Los Angeles Times, and then it could be heard by the Supreme Court again, pending appeals.

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Sam Barron has almost two decades of experience covering a wide range of topics including politics, crime and business.

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- **Citation (apa Style)**
  Barron, S. (2024, September 16). Calif. Law Makes It Easier to Recover Art Taken by Nazis*Newsmax.com*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19BADCD8F8E7BFC0.